

SENATE No. 1227

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick M. O'Connor

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to bodily autonomy and family integrity.

PETITION OF:

NAME:

Patrick M. O'Connor

DISTRICT/ADDRESS:

First Plymouth and Norfolk

SENATE No. 1227

By Mr. O'Connor, a petition (accompanied by bill, Senate, No. 1227) of Patrick M. O'Connor for legislation relative to bodily autonomy and family integrity. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1094 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to bodily autonomy and family integrity.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to ensure bodily autonomy in medical decision making, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public health.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 111 of the General Laws, as so appearing, is hereby amended by inserting the
2 following new section:-

3 “Section 183A.

4 (a) Definitions:

5 “Coercion” is the intimidation of an individual with the intent to compel them to do an
6 act against his or her will by the use of psychological pressure, physical force, or threats and
7 includes requiring an individual to accept or undergo a health-related intervention as a condition

of hiring or continued employment; access to education; or participation in daycare, travel, religion, hobbies, entertainment, or sports.

“Health-related intervention” includes but is not limited to medical treatments or procedures, testing, physical or mental examination, vaccination or immunization, genetic procedure, experimental procedures and protocols, collection of specimens, participation in tracking or tracing programs, the wearing of masks, the maintaining of measured distance from other humans and animals that is not otherwise unlawful, the involuntary sharing of personal data or medical information, and other recommended or mandated countermeasures.

"Genetic procedure" includes any therapy, treatment, or medical procedure that is intended to: (a) add, remove, alter, activate, change, or cause mutation in an individual's DNA; or (b) replace, supersede, or bypass a normal DNA function.

(b) Fundamental right: based on the constitutions of the United States and the commonwealth of Massachusetts, persons have a fundamental right to bodily autonomy and self-determination in making health decisions for themselves and their minor children.

(c) No person may be mandated, required, or coerced by any public or private entity or person to accept any health-related intervention, except as allowed by subdivision (f) of this Section. This Subdivision (c) shall apply regardless of any other state or federal laws or orders or emergency.

(d) A person whose rights under this Act have been violated may bring action for:

(i) an injunction against any further violation;

(ii) damages incurred as a result of any violation;

(iii) punitive damages in the case of willful violation of this Act;

(iv) violation of Title 42 USC 1983 in the case of willful violation of this Act; and

(v) in employment-related cases, admission to or reinstatement of employment with back pay plus 10 percent interest, in addition to any other damages.

(e) In the case of any successful action to seek relief under this Act, the costs of the action, including but not limited to reasonable legal fee as determined by the court, shall be awarded in addition to damages.

(f) Nothing in this Act shall preclude:

(i) drug or alcohol testing;

(ii) a health-related intervention that is a bona fide occupational requirement, excluding any vaccination, immunization, or gene therapy;

(iii) any medical testing legally required for issuance of any vehicular license; or

(iv) any health-related intervention allowed under Section 12 of Chapter 123 of the Massachusetts General Laws relating to admission of an individual to a general or psychiatric hospital for psychiatric evaluation and, potentially, treatment.”